16 — Marketing consent form and register

Français (version de référence) : ../fr/16-consentement-prospection.md

> **TEMPLATE — TO VALIDATE.** For any collection of contacts for commercial messages (trade fair, door-to-door, WhatsApp, website form, partners).

Header	
Jurisdiction	DRC — Digital Code, art. 68–72 (direct marketing: prior consent; silence is not consent)
Assumptions	H-08
Sources	S01 — see 00-legal-research.md § 7
Clauses to validate	V-08 (proof, WhatsApp channel, validity period of consent)
Version	[NUMBER] of [DATE]

1. Rules

- **No pre-ticked box**, no consent inferred from silence or from a business card left behind.
- One consent **per channel**: e-mail, SMS, WhatsApp, call.
- Consent separate from the demo request: refusing news does not prevent being called back for the requested demo.
- Every commercial message identifies the sender and a simple way to unsubscribe (“STOP” on WhatsApp/SMS, link in the e-mail); unsubscription is applied within [48] hours.
- WhatsApp groups and broadcast lists: only add people who consented; prefer broadcast lists (recipients do not see the other numbers).
- Never buy or rent a contact list.

2. Form wording (paper or online)

> **Receive news from Nhill**
>
> [COMPANY NAME] (Nhill) would like to send you information about its offers, new features and workshops. Tick the channels you accept:
>
> ☐ E-mail: _____ ☐ WhatsApp: _____ ☐ SMS
>
> You can withdraw your agreement at any time: reply “STOP” or write to [DPO E-MAIL]. Your details are not passed to third parties. Details: privacy policy, [ADDRESS].
>
> Name: _____ Organisation: _____ Date: _____ Signature: _____

3. Consent register

Date and time	Person (name, organisation)	Channel	Contact	Wording shown (version)	Source (website, fair, partner, call)	Proof (form No., screenshot, log)	Withdrawal (date, means)

The website form automatically records the date, the choice and the policy version (`consent_marketing`, website database). Consents collected offline are entered in this register the same day.

4. Partners

A partner only passes on contacts who agreed to be contacted by Nhill (template 10, article 8), with the corresponding proof.